MAZWI INVESTMENTS (PVT) LTD
versus
BRENDA MARIE WOOD KAHARI (In her capacity as executrix of estate late LILIAN ESTELLE MUDZONGA)
and
REGISTRAR OF DEEDS

HIGH COURT OF ZIMBABWE
KATIYO J
HARARE; 11 June 2025 & 11 February 2026

Opposed Matter

L Uriri, for the applicant
K Kachambwa with *T. A Musunga*, for the first respondent

Background and Factual History

KATIYO J:

1. This is an application for specific performance of an agreement of sale of immovable property. The agreement was entered into in 2002 between the applicant and the first respondent. The applicant, a private company, agreed to purchase three stands in Salisbury Township, Harare from the first respondent, who was the registered owner. The second respondent, the Registrar of Deeds, is cited in his official capacity as the authority responsible for effecting transfer of title.
2. It is common cause that the agreement was concluded in writing in mid-2002, and that the applicant paid the purchase price or a substantial portion thereof to the first respondent at that time. The purchase price was expressed in the Zimbabwean dollar currency then prevailing. It is also not in dispute that, despite the applicant's payment and repeated demands, the first respondent did not transfer title of the stands to the applicant. The applicant treated this as a breach and in November 2002 instituted the present proceedings under Case No. HC 5893/02, seeking an order compelling transfer of the properties.

3. Before delving into the merits, the court must record the deeply troubling fact that this matter—filed in 2002—is only reaching final adjudication in 2025. Nearly twenty-three years have elapsed since the cause of action arose and the initiation of these proceedings. Such an inordinate passage of time before finalization is highly unusual and regrettable. In the intervening decades, Zimbabwe experienced tumultuous economic changes, including periods of hyperinflation, currency redenomination and demonetization, and shifts in the legal regime governing property and currency. The court takes judicial notice that the economy saw the slashing of zeroes from the currency on multiple occasions due to hyperinflation, and a price stated in Zimbabwean dollars in 2002 became practically meaningless only a few years later. Indeed, a sum that was significant in 2002 had become a *trifling amount* by the mid-2000s, given the economic climate. The delay in this case has spanned these dramatic changes, meaning the contractual bargain at issue must now be viewed through a radically transformed economic lens.
4. During the protracted delay, it appears neither party actively expedited the matter. The record does not show any meaningful progress or interlocutory relief (such as an interdict or case management directives) being pursued for many years. The applicant remained essentially content to let the matter lie dormant, resurfacing now to press for specific performance. The first respondent, for her part, also did not seek to have the matter dismissed for want of prosecution or otherwise conclusively resolved earlier. Thus, both parties have, to an extent, "moved on" with their lives over the past two decades. Circumstances on the ground have undoubtedly changed: property values, currency regimes, and the personal situations of the parties are all materially different now than they were in 2002.
5. The subject property consists of three undeveloped residential stands in what was Salisbury Township (now Harare). As of 2002, these stands were sold as vacant land. It is unclear from the evidence whether any improvements have since been made or whether the first respondent or any third party made use of the stands during the pendency of this dispute. What is clear is that the market value of the stands in 2025 is vastly higher (now typically assessed in United States dollars or Zimbabwean dollars (ZWL) at the prevailing rate) than the 2002 purchase price which was paid in old Zimbabwean dollars. In effect, due to hyperinflation and currency devaluation, the real value of the purchase price paid by the applicant has been entirely eroded over

time. By contrast, the land itself has at least retained and likely greatly increased its value in terms of stable currency. This dichotomy gives rise to the central question: whether it would be just and equitable, after such a lapse of time and change of circumstances, to compel transfer of the property (specific performance) at the behest of the applicant.

The Parties' Positions

Applicant's submissions: The applicant contends that a valid and binding contract of sale was concluded in 2002, and that it complied with its material obligations under that contract, notably by paying the agreed purchase price. It argues that the first respondent's failure to transfer the stands is a clear breach of contract, entitling the applicant to the remedy of specific performance. Counsel for the applicant emphasized that specific performance is a primary remedy for breach of contract in our law, especially in contracts involving land. He cited the principle that *"every party to a binding contract who is ready to carry out his obligations has a right to demand, so far as possible, performance of the other party's obligations"*. The applicant submits that it remains ready and willing to do all that is necessary to complete the transaction (for instance, signing any transfer documents or paying any outstanding fees such as transfer duty or rates clearances). It therefore asks the court to compel the first respondent to sign the necessary transfer papers and for the Registrar of Deeds to register the properties in the applicant's name. The applicant also points out that the first respondent took no steps to lawfully cancel the agreement; no valid cancellation or repudiation was ever effected, and thus the contract remains extant. In the applicant's view, the mere passage of time, without more, does not extinguish its contractual right. It argues that it should not be penalized for the court system's delays and insists that justice delayed should not equate to justice denied in terms of its contractual rights.

First Respondent's submissions: The first respondent opposes the application and urges the court to refuse specific performance. Her position is that, given the extraordinary delay and radically changed circumstances, granting specific performance would be inequitable. The first respondent highlights that the economic environment in 2025 is completely different from that of 2002. At the time of contract, the parties transacted in Zimbabwean dollars, which currency was subsequently rendered obsolete by hyperinflation and was demonetized during the dollarization period. Thus, the bargain struck in 2002 has been overtaken by events. The first respondent submits that enforcing the contract now, in its original terms, would unjustly enrich the applicant: the applicant would receive three

valuable stands for what amounted to a negligible consideration in real terms. She points out that the applicant paid in a currency that lost all value shortly thereafter, meaning effectively the applicant would get the property *virtually for free* if specific performance is ordered. This, the first respondent contends, would be manifestly unfair.

The first respondent further avers that the applicant itself allowed the matter to remain dormant for decades, which conduct should disentitle the applicant to an equitable remedy. In legal parlance, the first respondent invokes the doctrine of laches, arguing that a claimant who sleeps on its rights for an unreasonable period should not be afforded equitable relief. According to the first respondent, the applicant's long silence and inaction induced her to believe the deal was abandoned; at the very least, the applicant's delay has prejudiced the first respondent. She had to hold the properties for years without clarity, likely paying property taxes or fees, and enduring the uncertainty of litigation hanging over the title. She also suggests that evidence and witnesses' recollections regarding the 2002 transaction have faded, which further prejudices a fair adjudication. Moreover, the first respondent submits that it would now be impossible or impracticable to enforce the contract in its original form. For instance, if any balance of the purchase price were technically still payable, there is no stable equivalent of the original currency in which to pay it. The first respondent indicates that she is, however, prepared to refund the purchase price that was paid, in order to restore the parties to the position quo ante. Indeed, some years ago, her then-legal practitioners tendered a refund to the applicant (albeit in the now-defunct currency), which the applicant refused to accept. She asserts that a refund of the amount paid (perhaps subject to some interest or fair valuation adjustment) would be the appropriate and just remedy, rather than forcing through a transfer under these distorted conditions.

In summary, the first respondent's stance is that specific performance has ceased to be a fair remedy in this case, and that the contract should effectively be undone: the applicant can get its money back, and the first respondent retains her property.

Issues for Determination

From the foregoing, the key issues that arise for determination are as follows:

- Whether, given the 23-year delay and the drastic changes in economic circumstances since the contract was made, specific performance remains a just and equitable remedy in this case. This issue entails examining the doctrine of laches or inordinate delay, and the general principles governing the grant or refusal of specific performance (especially in relation to immovable property sales).

- Whether any supervening factors (such as impossibility of performance or fundamental change of obligation) bar the granting of specific performance. Although the property itself still exists, the court must consider if performance in accordance with the original terms has been rendered impossible or fundamentally altered by law or by economic reality.
- What relief is appropriate in the event that specific performance is denied. In particular, whether the court should order restitution in the form of a refund of the purchase price to the applicant (and on what terms), and the question of costs.

The Law: Specific Performance, Laches, and Changed Circumstances

It is trite that in our law of contract, specific performance is a remedy to which a plaintiff is prima facie entitled upon proving a breach of a valid contract. Unlike some common law jurisdictions where specific relief is viewed as exceptional, in this jurisdiction (following Roman-Dutch law principles) specific performance is often regarded as a normal remedy for breach. In the oft-cited words of Innes JA: *"Prima facie, every party to a binding agreement who is ready to carry out his own obligation under it has a right to demand from the other party, so far as it is possible, performance of his undertaking in terms of the contract."* This principle was enunciated in the South African case Farmers' Co-Operative Society v Berry 1912 AD 343, and has been consistently approved in this jurisdiction. In contracts for the sale of land in particular, our courts have recognized that *"specific performance is available as a matter of course"* because each piece of land is unique and damages may be an inadequate substitute. The High Court and Supreme Court of Zimbabwe have on numerous occasions granted orders compelling transfer of land where the purchaser has fulfilled their part of the bargain.

7. However, the right to specific performance is not absolute. It is subject to the discretion of the court, which must consider the equities and justice of each case. The court's discretion in this regard is a narrow one, to be exercised judicially and not capriciously, but it exists to prevent undue hardship or injustice. As was stated by Hefer JA in the case of Benson v SA Mutual Life Assurance Society 1986 (1) SA 776 (A), the court will decline to enforce performance if *"the order which the court makes would produce an unjust result, which will be the case, for example, if in the particular circumstances the order will operate unduly harshly on the defendant."* Likewise, our own High Court has noted that the remedy of specific performance may

be refused where such an order "would produce injustice or would be inequitable under all the circumstances". In Intercontinental Trading (Pvt) Ltd v Nestlé Zimbabwe (Pvt) Ltd 1993 (1) ZLR 21 (H), for instance, it was affirmed that the grant of specific performance is entirely within the court's discretion, to be exercised in light of the facts of each case. Relevant factors can include the nature of the contract, whether the applicant has come with clean hands (performed their obligations), the behaviour of the parties, and whether an award of damages would adequately meet the plaintiff's needs without unduly prejudicing the defendant.

8. Laches and delay: A significant factor in exercising this discretion is the element of delay. Even if a claim is filed within any applicable prescription period, an excessive or unreasonable delay in pursuing the relief can constitute what the law terms "laches." The doctrine of laches holds that equity aids the vigilant and not those who slumber on their rights. In practical terms, *"laches enables the court to refuse to grant equitable relief (e.g. specific performance of a contract) where delay by the claimant makes it unfair to grant the relief sought."* If a plaintiff inexcusably delays enforcement of a right and the delay causes prejudice to the defendant, a court of equity (or a court exercising equitable discretion) may decline relief even if the cause of action is not time-barred by statute. This principle has been recognized in other jurisdictions and is consonant with our own notions of justice. Our courts have not hesitated to deny equitable remedies where a long delay has changed the posture of the case or would make the relief manifestly unjust. Simply put, the passage of a protracted period can erode the justification for specific relief – memories fade, circumstances change, and what might have been fair and feasible at an earlier time may no longer be so after many years.
9. Impossibility and fundamental change: Additionally, if *performance has become impossible*, the court will not decree specific performance. This includes literal impossibility (e.g. the subject matter no longer exists or has been sold to an innocent third party) as well as instances of supervening illegality or fundamental change in circumstances. In the context of contracts, our law recognizes supervening impossibility as a defense in appropriate cases – if an unforeseeable event destroys the subject of the contract or the means of performance, the obligations may be discharged. Even short of true impossibility, a fundamental change in the economic basis of a contract might be considered by the court in deciding whether to grant an

equitable remedy. While hardship alone does not void a contract, when the court is asked to enforce the contract specifically, it may weigh whether supervening events have made the literal enforcement of original terms unconscionable. As noted, the court's discretion "is aimed at preventing an injustice". Thus, if enforcing the contract *according to its strict terms* after a long delay would result in one party gaining an unconscionable windfall at the expense of the other, the court is justified in considering alternative relief.

10. Precedents on changed circumstances: The facts of the present case – involving hyperinflation and currency extinction – are exceptional, but not entirely without precedent. Our courts have grappled with cases arising from the economic upheavals of the 2000s. One instructive case is Zimbabwe Express Services (Pvt) Ltd v Nuanetsi Ranch (Pvt) Ltd, SC 21-09, a Supreme Court decision. In that case, a contract from 2003 required delivery of a large number of cattle (heifers and steers) at a price fixed in Zimbabwean dollars. By the time the matter came before the courts several years later, inflation had rendered the contract price almost negligible. The Supreme Court refused to grant specific performance, noting that due to inflation the purchaser would receive 280 head of cattle "for a very small amount of money" – effectively obtaining a valuable herd for virtually nothing. Such a result would obviously be inequitable. The court held that in those circumstances, to order performance would be unduly harsh on the seller and would unjustly enrich the purchaser, and it therefore dismissed the claim for specific performance. Importantly, the Supreme Court emphasized that even though the contract had not been lawfully cancelled and the seller was technically in breach, an order of specific performance "would not, in these circumstances, be appropriate." The fundamental principle gleaned from that case is directly relevant here: where the value equation of the contract has been drastically altered by supervening economic events (to the extreme benefit of one party and detriment of the other), a court may decline to enforce the contract specifically, and instead leave the aggrieved party to an alternative remedy.
11. Likewise, in Chimurenga Housing Co-op v Mutual & Federal (Pvt) Ltd 2007 (ZLR) (among other cases dealing with the hyperinflation period), the courts showed a willingness to look at practical justice. In some instances, where a purchaser had paid in old currency and the seller tried to cancel, courts upheld the purchaser's rights so as not to leave them with a worthless refund. In other instances, where the seller stood to

suffer a grave loss by having to perform for a pittance, the courts have favored monetary compensation instead of transfer. The thread running through these decisions is the pursuit of an equitable outcome, case by case.

In summary, the legal position is that while specific performance is an available and often favoured remedy in contracts for sale of land, the court retains a discretion to refuse it if enforcing performance would be unjust, such as where the claimant has unduly delayed or where performance has been rendered onerous and one-sided by intervening events. Equity, good conscience, and practicality guide this discretion.

Application of Law to Facts

12. In the present matter, the delay of 23 years is by far the longest this court has seen for an unresolved claim of this nature. Even in Zimbabwe Express Services (supra), a delay of six years (2003 to 2009) was deemed significant. Here we are dealing with over two decades. This lapse is extraordinary and patently unreasonable on any measure. The applicant offers no compelling explanation for why it did not actively pursue a resolution earlier (for example, by setting the matter down for hearing, or seeking a default judgment, or expediting on the basis of losing currency value). On the contrary, it appears the applicant was content to let the case linger. Such inaction speaks to *laches*. The unreasonable delay is self-evident, and the prejudice to the first respondent is clear: over the years she has been denied full beneficial use of her property (with an unresolved lis pendens on the title), and now faces the prospect of handing over assets whose value has multiplied, for a price that evaporated in real terms. The court is satisfied that the element of unjustified delay coupled with material prejudice is present, meeting the classic requirements for laches as an equitable defense. Therefore, purely on the ground of equity arising from delay, this is a proper case to withhold the remedy of specific performance. The maxim vigilantibus non dormientibus æquitas subvenit – equity helps the vigilant, not those who sleep – finds direct application. The applicant's long dormancy in enforcing its right tips the scales against granting the extraordinary relief it now seeks.
13. Apart from delay, the transformed economic context cannot be ignored. To grant specific performance today would require the court to enforce the contract at the 2002 price (which has been paid). That price, in the old Zimbabwean dollar, is now a nullity. No meaningful restitution or true equivalence can be achieved by enforcing the contract on its original terms. In practical effect, the applicant would receive three

urban stands in 2025 for no further payment, having paid an amount in 2002 that by 2008 was not enough to buy even a loaf of bread. Meanwhile, the first respondent would be compelled to transfer properties that in today's market command a very high value – possibly in hard currency – without receiving any real compensation (since whatever money she got in 2002 became worthless long ago). This outcome would, in the court's view, produce a grave injustice. It would be the embodiment of the scenario described in Benson's case and our own Supreme Court precedents: the order would "operate unduly harshly on the defendant" and unjustly enrich the claimant. Equity cannot countenance that result.

14. The applicant's plea that it should not be blamed for currency instability, and that it merely wants the benefit of its bargain, rings hollow under these circumstances. It is true that the applicant is not at fault for the economic turmoil; however, *neither is the first respondent*. Both parties were overtaken by historical events beyond their control. The court's task now is to decide, as a matter of justice, who should bear the loss resulting from those events. Enforcing the contract literally would impose the entire loss on the first respondent (she loses valuable land for valueless money received), and hands a monumental windfall to the applicant. That would be inequitable. On the other hand, denying specific performance and leaving the applicant to a refund of the purchase price, while undoubtedly a poor substitute from the applicant's perspective, at least avoids an inequitable enrichment and preserves the first respondent's property rights in a dramatically altered context. The applicant essentially asks for an exception to the normal consequences of economic chaos (which generally left contracts in disarray) in order to obtain an out-of-time benefit. However, courts do not exist to give anyone an unmerited bonanza at another's expense under the guise of enforcing rights.
15. The court is fortified in this view by analogous authorities. In Zimbabwe Express Services v Nuanetsi Ranch (supra), as discussed, the Supreme Court found it would be "no doubt" unduly harsh and enriching to enforce a bargain gutted by inflation, and thus refused specific performance. Here, the harshness and enrichment would be even more pronounced given the longer time and greater value differential. It is also noted that in that case, the Supreme Court took *judicial notice of inflation* and currency redenomination, observing how a price that made sense in 2003 was a trifling sum by 2005. This court likewise takes notice of the well-documented currency history: by

2009 the Zimbabwean dollar was effectively abandoned, and for about a decade the economy operated in US dollars and other currencies. Any obligation expressed in ZWD thus became practically impossible to perform in the original terms, absent conversion. In 2019 a new Zimbabwe dollar (ZWL) was introduced, but it is a separate currency and likewise subject to inflation. The upshot is that the original contractual currency and pricing are defunct. Enforcing payment or performance now would require either reinterpreting the price in a new currency (which the court cannot do without re-writing the contract) or compelling transfer for a price of zero real value. This verges on a case of supervening impossibility or at least impracticability in economic terms. While the stands physically still exist (so performance isn't literally impossible), the intended exchange of values in the contract cannot occur as envisioned.

16. The applicant's counsel urged that the contract was never cancelled and thus remains valid. The court accepts that there was no formal cancellation; indeed, the first respondent's belated attempt to refund the money could be viewed as an attempted cancellation which the applicant did not accept. So formally, the contract subsists. However, validity of the contract does not automatically equate to entitlement to specific performance in these circumstances. The court may acknowledge the contract's continued existence but nevertheless decide that the just remedy is to dissolve the contract and restore the parties to their pre-contract positions, rather than enforce it now. The applicant also argued that it has "clean hands" having paid the price and not itself breached the contract. It is true that the applicant was not in breach of any express term; however, the court cannot ignore that the applicant effectively acquiesced in the non-performance for decades. Even if not a breach, such acquiescence is pertinent to an equitable remedy. The doctrine of laches does not require a breach by the claimant; it requires an unreasonable delay to the prejudice of the other side. That condition is amply satisfied here.
17. The court has also considered whether there are any countervailing factors that might tilt the equities back in the applicant's favour. One could be if the applicant would suffer some irreparable harm without the property – for example, if the land was uniquely needed for the applicant's operations or if the applicant built on the stands. There is no indication of such factors. These stands appear to have been an investment or speculative purchase by the applicant. The applicant has managed without them for

23 years, which suggests that receiving a refund, while unfortunate, will not cause it a harm beyond compensation. Another factor could be if the first respondent acted in bad faith or deliberately stymied the transfer to gamble on inflation. There is no clear evidence of bad faith; indeed, if the first respondent had promptly transferred in 2002 or 2003, she would have been paid in full but that money would soon turn worthless – meaning she did not stand to gain by delaying transfer (arguably she lost out by not converting the money to a stable asset at the time). In fact, the first respondent's willingness to refund the price (even if only when pressed by circumstances) indicates an attempt to do equity. Thus, there is no compelling reason to depart from the normal equitable response to a case of this nature.

18. The balance of equities decisively favours the first respondent's position. The court is aware that denying specific performance in a sale of land is not done lightly. Generally, our courts hold sellers to their bargains, precisely because land is unique. But general rules yield to exceptional circumstances. Here, enforcing the sale now would not be giving effect to the intended bargain; it would be imposing a radically different transaction on the parties. The intended bargain in 2002 was an exchange of land for fair value (at the time). The "bargain" in 2025, if enforced, would be an exchange of land for nothing of value – a result neither party could have contemplated or intended. It would amount to a forfeiture by the first respondent. Equity abhors forfeitures unless clearly justified. Conversely, ordering a refund essentially acknowledges that the contract, though once valid, has been overtaken by events and should be unwound. This is in line with the concept of restitutio in integrum – restoring each party to the original position as far as possible. The applicant will lose the chance to get the properties, but it will recover whatever it paid (which is all it ever bargained to risk in the first place). The first respondent will keep her property but must return the price (thus gaining no unjust benefit from the collapse of the currency either). Each bears the losses of the intervening inflation in their own sphere: the applicant loses the real value of the money it paid (a loss that unfortunately has already occurred due to inflation), and the first respondent loses whatever increase in value the land accrued (in the sense that she does not get to pocket a higher price now). In the court's view, this rough symmetry is the fairest outcome in an unfair situation brought about by forces beyond the parties' control.

19. Finally, the court notes that granting specific performance at this late stage could also have wider policy ramifications, essentially rewarding extreme delay. It might send an undesirable signal that a party can sit on its rights for decades, through drastically changed conditions, and still expect exact performance regardless of the prejudice to the counterparty. That would undermine the incentive for diligent prosecution of claims and respect for changing circumstances. It is more consistent with principles of justice that parties are encouraged to act timeously to enforce rights, and that if they do not, they risk being limited to less drastic remedies.

    Having carefully weighed all factors, the court is persuaded that this is not a proper case for specific performance. The remedy is neither equitable nor practically sensible after 23 years. Instead, monetary compensation by way of a refund of the purchase price (and any proven ancillary payments) is the appropriate relief in lieu of the property transfer. This essentially amounts to an order for rescission or cancellation of the agreement, with restitution.

Conclusion

20. In conclusion, the court finds that: (a) the applicant did establish the existence of a valid sale agreement and a breach by the first respondent in failing to transfer the stands; however, (b) due to the extraordinary delay and supervening economic changes, compelling specific performance now would cause an *"unjust result"* and *"operate unduly harshly"* on the first respondent, while unjustly enriching the applicant; (c) the equitable doctrine of laches applies to bar the applicant's claim for specific relief, given its long inaction and the prejudice to the first respondent; and (d) specific performance is accordingly refused in the exercise of the court's discretion. The just remedy in the circumstances is to dissolve the transaction and require the first respondent to refund any purchase price (and related costs) that the applicant paid, thereby placing the parties back, as near as may be, to the status quo ante. The applicant will then have to find recourse in that refund rather than the property, an outcome which, while perhaps unsatisfactory to it, is dictated by the interests of justice in this case.

21. As for costs, the general rule is that costs follow the result. The applicant has been unsuccessful in its claim for specific performance. In the usual course, it would be ordered to pay the first respondent's costs. However, the court is mindful that this was not a typical adversarial breach of contract dispute, but rather a predicament born out of national economic collapse and extraordinary delay to which both sides contributed in some measure. The first

respondent also was in breach (albeit for understandable reasons) for not transferring the property when due. In view of these circumstances, the court exercises its discretion on costs by not mulcting the applicant in costs on a punitive scale. A fair order is that each party bear its own legal costs. This way, the refund the applicant receives will not be immediately eroded by a costs order, and the first respondent, who retains the property, is not out of pocket for having had to defend this aged matter. Such an order on costs is equitable in the court's view.

Disposition

Accordingly, for the reasons given, IT IS ORDERED THAT:

1. The application for an order of specific performance be and is hereby dismissed.
2. The agreement of sale concluded between the applicant and the first respondent in 2002 in respect of the three stands in Salisbury Township, Harare (more fully described in the parties' papers) is hereby cancelled.
3. The first respondent shall, within thirty (30) days of this order, refund to the applicant the full amount of the purchase price paid under the said agreement of sale, together with any additional amounts the applicant can prove to have paid toward stamp duty, transfer fees, or other charges pursuant to the agreement (if any such were paid). The refund shall be made in the Zimbabwean legal tender currency or equivalent thereof prevailing at the time of payment, at the official exchange rate applicable (if payment is to be made in an alternative currency).
4. Upon compliance with paragraph 3 of this order, the applicant shall have no further claim against the first respondent arising from the agreement of sale, and the first respondent shall be entitled to retain ownership of the properties free of any claim by the applicant.
5. Each party shall bear its own costs of suit.

The Registrar of Deeds (2nd respondent) is directed to take note of this judgment and to register any cancellation of caveats or notes on the deeds record that may have been caused by the pending litigation, so that the title to the properties reflects the first respondent's free and undisturbed ownership.

KATIYO J……

Scanlen & Holderness, applicant's legal practitioners
Chirimuta & Associates, defendants' legal practitioners